

litigant practicing before the Courts, he cannot now, avail himself of a motion to set aside these sanctions.

The Court finds credible Dove's arguments that Boaz could not have believed that Mr. Dove's discovery motions were withdrawn. Indeed, Boaz was informed by Dove's counsel on October 15 and 16, 2025 that he execute an amended settlement agreement because of his refusal to comply with the parties' settlement agreement. The letter further informed Boaz that his opposition to the motion for further responses was due on October 20, 2025. Boaz knew or should have known that the case, and the motion, was ongoing even after he withdrew his cross-complaint (without prejudice). Held to the standard of It is unreasonable to assume that the withdrawal of a cross-complaint results in Dove's withdrawal of a pending discovery motion. Thus, Boaz does not have grounds for excusable neglect.

The issue of enforcing the mediated settlement agreement is already on calendar for March 18, 2026. In order to preserve judicial resources, the Court defers this issue to hearing of that motion.

Ruling

Defendant Roger Boaz's ("Boaz") Motion to Set Aside Sanctions and Enforce Mediated Settlement Agreement filed on November 13, 2025 is **denied**. Sanctions in the amount of \$2,307.50 and \$2,425.00 and are due within ten (10) days to Dove's counsel.

Dove's counsel shall prepare a proposed order conforming to this ruling and shall file it no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.

12. 9:00 AM CASE NUMBER: C23-02906

CASE NAME: KATELYN SCHAEFER VS. BRYAN DOVE

***HEARING ON MOTION IN RE: FOR SANCTIONS AGAINST OPPOSING COUNSEL FOR BAD FAITH CONDUCT**

FILED BY:

TENTATIVE RULING:

Summary

Defendant Roger Boaz ("Boaz") filed a Motion for Order Imposing Sanctions Against Opposing Counsel, Kevin Hermanson is **denied**.

Background

See Line 11 for procedural background, which is incorporated herein. On November 13, 2025, Defendant Roger Boaz ("Boaz") filed a Motion for Order Imposing Sanctions Against Opposing Counsel for Defendant Bryan Dove ("Dove"), Kevin Hermanson, pursuant to Cal. Code of Civ. Proc §§ 128.5 and 2023.030 asserting that Mr. Hermanson conducted bad faith litigation tactics, including coercion, misrepresentation and abuse of process. This motion was supported by a Memorandum of Points and Authorities and Declaration of Boaz. There is no proof of service accompanying the motion. However, Dove filed a timely opposition on February 26, 2026. "[I]t is well settled that the appearance of a party at the hearing of a motion and his or her opposition to the motion on its merits is a waiver of any defects or irregularities in the notice of the motion. *Eliceche v. Federal Land Bank*

Assn. of Yosemite (2002) 103 Cal.App.4th 1349, 1375.

On February 26, 2026, Dove filed an opposition asserting several arguments: (1) Boaz fails to attach the supposed exhibits that he relies on his declaration. (2) Boaz improperly relies on legal authority that does not apply to the circumstances alleged in his Motion. (3) Boaz also misrepresents facts that occurred at the parties' October 9, 2025, mediation, and in the underlying suit in an effort to harass Mr. Dove and counsel for Mr. Dove in a case that Boaz admittedly agreed to settle. Dove also requests sanctions in the amount of \$1,400 for opposing this frivolous motion.

Analyses

Self-Represented Litigant

The Court is aware that Boaz is proceeding without an attorney in this lawsuit. However, a self-represented party "is to be treated like any other party and is entitled to the same, but no greater consideration than other litigants and attorneys." *Williams v. Pacific Mutual Life Ins. Co.* (1986) 186 Cal.App.3d 941, 944. Thus, as is the case with attorneys, self-represented litigants must follow correct rules of procedure. *Nwosu v. Uba* (2004) 122 Cal.App.4th 1229, 1246-1247; see also *Rapleyea v. Campbell* (1994) 8 Cal.4th 975, 984-85 ("mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation."); see also *Leslie v. Board of Medical Quality Assurance* (1991) 234 Cal.App.3d 117, 121 (self-represented parties are held to "the same 'restrictive procedural rules as an attorney'"). Self-represented litigants are not entitled to special treatment and are required to follow the procedural rules that govern civil litigation. *McComber v. Wells* (1999) 72 Cal.App.4th 512, 522-523.

Nevertheless, "[t]rial judges must acknowledge that in *propria persona* litigants often do not have an attorney's level of knowledge about the legal system and are more prone to misunderstanding the court's requirements.' [Citation.] When one party has counsel and the other does not, the trial court 'should monitor to ensure the in *propria persona* litigant is not inadvertently misled, either by the represented party or by the court. ... [S]pecial care should be used to make sure that verbal instructions given in court and written notices are clear and understandable by a layperson. This is the essence of equal and fair treatment, and it is not only important to serve the ends of justice, but to maintain public confidence in the judicial system.'" *Petrosyan v. Prince Corp.* (2013) 223 Cal.App.4th 587, 594.

Applied here, there is no evidence that Plaintiff was misled by the Court or Defendants.

Boaz Does not Establish a Violation of Section 128.5

Under both Cal. Code of Civ. Proc. § 128.5, and case law interpreting this statute, an action is deemed frivolous or in bad faith so as to justify the imposition of sanctions if it is prosecuted for an improper motive (including harassment or delay), or if it is totally devoid of any merit. The standard of determining whether a lawsuit is frivolous is an objective one: a suit indisputably has no merit only where any reasonable attorney would agree that the action is completely without merit. *Finnie v. Town of Tiburon* (1988), 199 Cal. App. 3d 1.

Under Cal. Code of Civ. Proc § 128.5, a trial court may order a party to pay the reasonable expenses,

including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay. A motion for sanctions brought by a party primarily for an improper purpose, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation, shall itself be subject to a motion for sanctions. (Code of Civil Procedure § 128.5(g).) If warranted, the court may award to the party prevailing on the motion the reasonable expenses and attorney's fees incurred in opposing a motion made under section 128.5, subdivision (a). (Code of Civil Procedure § 128.5(f)(1)(C).) A trial court's power to punish should be used most sparingly to deter only the most egregious conduct. An attorney needs only a reasonable and honest belief in the viability of each theory and the evidence supporting that theory, not a conviction his client will prevail, to justify filing a claim or defense. *Campbell v. Cal-Gard Surety Services, Inc.* (1998) 62 Cal. App. 4th 563.

Applied here, Boaz's motion improperly applies Section 128.5 to facts that do not warrant monetary sanctions. Dove contends that Boaz improperly accuses him, his counsel and prior mediator, Chris Appleton of misconduct. (See Boaz Decl., ¶ 4.) However, Cross-Defendant admits that he "does not contend that the mediator misrepresented my position."

Moreover, Boaz does not prove to this Court that the alleged video, which exists, improperly supports bad faith or frivolous tactics. Such actions taken by Dove or his attorney do not support a finding that they were taken to harass or cause unnecessary delay towards the resolution of this action. Overall, Boaz does not establish any facts that support that Dove and his attorney acted in bad faith, or in a manner that amounted to frivolous action against him.

Indeed, applying the standards of a practitioner, the Court finds that Boaz brings this motion without substantial justification and without a factual basis to support bad faith. Such action allows Dove to recover reasonable sanctions against Boaz for this unsupported motion.

Ruling

1. Defendant Roger Boaz ("Boaz") Motion for Order Imposing Sanctions Against Opposing Counsel, Kevin Hermanson is **denied**.
2. The Court finds that Dove is the prevailing party in this Motion. As such, Dove shall recover the amount of \$1,400 as the prevailing party pursuant to Section 128.5(f)(1)(C). Said fees shall be paid no later than ten (10) days from the date of this hearing.
3. Defendant Roger Boaz is ordered to review and consider Cal. Code of Civ. Proc §§ 391(b)(3) and 391.7(a) which state:

391(b) "Vexatious litigant" means a person who does any of the following: (3) In any litigation while acting in propria persona, repeatedly files unmeritorious motions, pleadings, or other papers, conducts unnecessary discovery, or engages in other tactics that are frivolous or solely intended to cause unnecessary delay.

391.7(a) In addition to any other relief provided in this title, the court may, on its own motion or the motion of any party, enter a prefilming order which prohibits a vexatious litigant from filing any new litigation in the courts of this state in propria persona without first obtaining leave of the presiding justice or presiding judge of the court where the litigation is proposed to be filed. Disobedience of the order by a vexatious litigant may be

punished as a contempt of court.

4. Dove's counsel shall prepare a proposed order conforming to this ruling and shall file it no later than five (5) days from the date of this hearing, attaching a copy of this tentative ruling.

13. 9:00 AM CASE NUMBER: C24-01952
CASE NAME: MUJEEBULLAH AMINI VS. GENERAL MOTORS, LLC
***HEARING ON MOTION IN RE: ATTORNEY FEES AND COSTS**
FILED BY: AMINI, MUJEEBULLAH

TENTATIVE RULING:

Summary

Plaintiff Mujeebullah Amini's ("Plaintiff") Motion for Attorney's fees and Costs against Defendant General Motors LLC ("GM") is **granted** as set forth herein.

Background

Plaintiff pursued this case against GM pursuant to the Song-Beverly Consumer Warranty Act. Plaintiff claims that he purchased a 2021 Cadillac Escalade ESV ("Vehicle") on April 10, 2023. Per the purchase agreement, the agreed upon value of the Vehicle was \$118,168.24. The Vehicle came equipped with GM's Certified Pre-Owned Bumper-To-Bumper Limited and Certified Pre-Owned Powertrain express warranties. The Vehicle also came with an implied warranty of merchantability, by operation of law. Plaintiff alleged that he was damaged and brought various claims, including claims under Civil Code § 1794 for breach of the implied warranty of merchantability and express warranty. On April 15, 2025, GM served a 998 Offer of \$205,000 plus \$20,000 in attorneys' fees and costs, or fees to be determined by motion. Plaintiff accepted GM's 998 offer on April 23, 2025, with Counsel electing to pursue fees by motion. Plaintiff filed a notice of settlement on May 1, 2025.

On November 5, 2025, Plaintiff filed this Motion to recover attorney's fees and costs pursuant to Cal. Civil Code § 1794(d) and Cal. Code of Civ. Proc ("CCP") § 998 against GM. This motion is made on the grounds that Plaintiff is the prevailing party under the Song-Beverly Consumer Warranty Act and the terms of the CCP § 998 Offer to Compromise accepted by Plaintiff on April 23, 2025, which entitles Plaintiff's counsel includes a declaration to support attorney fees, costs, and expenses incurred in bringing this case against GM. As the prevailing party, Plaintiff seeks an award of attorneys' fees in the amount of \$43,319.00. Plaintiff also incurred costs and expenses totaling \$2,875.03. In total, Plaintiff requests an award of fees and costs in the amount of \$46,194.03.

On February 26, 2026, GM filed an opposition, supported by declaration of counsel, Matthew Dobson. Dobson's declaration contains a 1562 pages. Some of the attached documents include discovery in other cases not related to this case, meet and confer letters unrelated to this case, and miscellaneous other documents that are not related to this case and submitted for the purposes of comparison. The Court did not review every single page of this declaration, and spot checked what it thought was relevant information. Indeed, it is not the job of the Court to sift through over a thousand pages of discovery, meet and confer letters and other irrelevant documents that Defense counsel could have better summarized by counsel. If the Court was interested in unrelated pleadings from other cases, which it is not, the Court would have requested supplemental briefing. Such purposeful overload of